



CHAPTER lvi.

An Act to confirm a Scheme of the Charity Commissioners A.D. 1914.
for the Application or Management of the Charities con-
sisting of the Baptist Chapel Burial Ground Sunday
Schools and Trust Property at Horsforth in the West
Riding of the County of York. [8th July 1914.]

WHEREAS the Charity Commissioners in their report to His Majesty of their proceedings during the year one thousand nine hundred and twelve reported that they had approved and certified a scheme for the application or management of the charities consisting of the Baptist chapel burial ground Sunday schools and trust property at Horsforth in the West Riding of the county of York comprised in the following indentures or one of them :—

Lease and release dated respectively the fourteenth and fifteenth day of August one thousand eight hundred and four ;

Lease and release dated respectively the eighth and ninth day of August one thousand eight hundred and thirty-six ;

Lease and release dated respectively the twelfth and thirteenth day of July one thousand eight hundred and forty-one ;

Conveyance dated the seventh day of November one thousand eight hundred and sixty-eight ;

Conveyance dated the twenty-third day of September one thousand eight hundred and eighty :

And whereas it is expedient that the scheme as the same is fully set out and defined in the schedule to this Act should be confirmed :

[*Price 3d.*]

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Chapel Charities Scheme Confirmation Act, 1914.

A.D. 1914. Be it therefore enacted by the King's most Excellent Majesty
— by and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows:—

Confirmation 1. The said scheme is hereby confirmed Provided always
of scheme. that nothing in this Act or in the said scheme shall be held to
interfere with the ordinary jurisdiction over endowed charities
now exerciseable or hereafter to become exerciseable by the High
Court of Justice and the Charity Commissioners.

Short title. 2. This Act may be cited as the Horsforth (West Riding)
Baptist Chapel Charities Scheme Confirmation Act 1914.

SCHEDULE.

A.D. 1914.

*Scheme for the Application or Management of the Charities
consisting of the Baptist Chapel Burial Ground Sunday
Schools and Trust Property at Horsforth in the
West Riding of the County of York.*

1. The above-mentioned charities and their endowments consisting of the above-mentioned chapel burial ground Sunday schools and trust property with the appurtenances shall be consolidated and shall be administered and managed subject to and in conformity with the provisions of this scheme under the title of the Horsforth Baptist Chapel and Trust Property herein-after called the charity.

2. The following persons shall be the first Trustees of the charity under this scheme :—

ALFRED BANNISTER works manager;

BENJAMIN FAWCETT cemetery keeper;

JOHN LISTER woollen buyer;

CHARLES BROWN grocer;

WILLIAM SHIRES works foreman;

LEONARD MOLLITT grocer's assistant;

ALFRED STEWART coal merchant;

WILLIE HALLAM steel and iron roller;

ROBERT SHEARER works foreman; and

JOSEPH BALMER railway clerk all of Horsforth; and

JOHN HOLMES of Harrogate clothing manufacturer; and

WILLIAM GRIMSHAW of Rawdon gentleman both in the county of York; and

ARTHUR RHODES of Histon in the county of Cambridge secretary.

3. The said chapel burial ground Sunday schools and trust property with the appurtenances shall forthwith vest in the said persons their heirs executors administrators or assigns according to the legal nature of the premises.

4. The said chapel burial ground Sunday schools and trust property with the appurtenances shall be held henceforth by the Trustees thereof upon the trusts and to and for the ends intents and purposes and with and subject to the powers and provisions (so far as the same may be applicable and capable of taking effect) which are contained and set out in the schedule to a certain deed poll dated

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A.D. 1914. 21st May 1907 under the hand and seal of Alfred Barran and which
— are known as “the model trusts” but so nevertheless that—

- (1) As regards the said burial ground the same shall not be sold except upon the condition that proper provision shall be made for the preservation of any graves therein so that such graves shall not be disturbed except under competent authority and that in the event of such disturbance being made under such authority provision shall be made for the proper removal and disposal of the contents of the said graves ;
- (2) As regards all the property of the charity the same shall (save as herein-after provided) be held subject to the restriction following namely that it shall not be lawful for the Trustees (notwithstanding anything in the said model trusts contained) to make or grant otherwise than with the express authority of Parliament or with the previous sanction of the Charity Commissioners or of a court of competent jurisdiction any sale exchange mortgage or charge thereof or any lease thereof in reversion after more than three years of any existing term or for any term of life or in consideration wholly or in part of any fine or for any term of years exceeding 21 years :

Provided that so long as the said chapel is registered as a place of meeting for religious worship with the Registrar-General of Births Deaths and Marriages in England and is bonâ fide used as a place of meeting for religious worship the restriction contained in sub-clause (2) of this clause shall not apply so far as regards the said chapel and its appurtenances or as regards such other property (if any) of the charity as by virtue of any provision of the Charitable Trusts (Places of Religious Worship) Amendment Act 1894 may for the time being be exempted from the jurisdiction conferred by the Charitable Trusts Acts 1853 to 1894.

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